



February 10, 2026

ENGROSSED

SENATE BILL No. 89

DIGEST OF SB 89 (Updated February 10, 2026 9:02 am - DI 140)

Citations Affected: IC 7.1-3.

Synopsis: Three-way permits. Provides the alcohol and tobacco commission may issue not more than: (1) three new three-way permits to the town of Schererville; (2) three new three-way permits to the city of Lafayette; (3) two new three-way permits to the city of West Lafayette; (4) eight new three-way permits to restaurants located within a transit development district located in the city of Michigan City; (5) two new three-way permits to the city of Delphi; and (6) two new three-way permits to the city of Bloomington.

Effective: Upon passage.

**Dernulc, Niemeyer, Niezgodski,
Spencer, Jackson L**

(HOUSE SPONSORS — VANNATTER, O'BRIEN, OLTHOFF)

December 9, 2025, read first time and referred to Committee on Public Policy.
January 22, 2026, amended, reported favorably — Do Pass.
January 26, 2026, read second time, amended, ordered engrossed.
January 27, 2026, engrossed. Read third time, passed. Yeas 39, nays 6.

HOUSE ACTION

January 29, 2026, read first time and referred to Committee on Public Policy.
February 10, 2026, reported — Do Pass.

ES 89—LS 6357/DI 87



February 10, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED SENATE BILL No. 89

A BILL FOR AN ACT to amend the Indiana Code concerning alcohol and tobacco.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 7.1-3-20-16.8, AS AMENDED BY THE
2 TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL
3 ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
4 UPON PASSAGE]: Sec. 16.8. (a) A permit that is authorized by this
5 section may be issued without regard to the quota provisions of
6 IC 7.1-3-22.

7 (b) Except as provided in section 16.3 of this chapter, the
8 commission may issue not more than four (4) new three-way permits
9 to sell alcoholic beverages for on-premises consumption to applicants
10 in each of the following municipalities:

- 11 (1) Whitestown.
- 12 (2) Lebanon.
- 13 (3) Zionsville.
- 14 (4) Westfield.
- 15 (5) Carmel.
- 16 (6) Fishers.
- 17 (7) Noblesville.

ES 89—LS 6357/DI 87



(c) The following apply to permits issued under subsection (b):

(1) An applicant for a permit under subsection (b) must be a proprietor, as owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in a municipality's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under subsection (b) may not exceed twenty-four (24) permits at any time. If any of the permits issued under subsection (b) are revoked or not renewed, the commission may issue only enough new permits to bring the total number of permits to twenty-four (24) active permits, with not more than four (4) in each municipality listed in subsection (b)(1) through (b)(6).

(4) The municipality may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding ~~IC 7.1-3-1-3.5~~ and IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of a permit may not be transferred.

(7) A permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit premises is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(d) Except as provided in section 16.3 of this chapter, in addition to the permits issued to the town of Whitestown under subsection (c), the commission may issue to the town of Whitestown not more than:

(1) three (3) new three-way permits; and

(2) three (3) new two-way permits;



under this subsection.

(e) The following apply to permits issued under subsection (d):

(1) An applicant for a permit under subsection (d)(1) or (d)(2) must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in a municipality's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under subsection (d) may not exceed the six (6) permits allocated by permit type, as set forth in that subsection.

(4) The municipality may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of a permit may not be transferred.

(7) A permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises under subsection (d)(1) or (d)(2) is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(f) Except as provided in section 16.3 of this chapter, in addition to the permits issued to the city of Noblesville under subsection (c), the commission may issue to the city of Noblesville not more than ten (10) new three-way permits under this subsection. The new three-way permits may be issued as follows:

(1) Three (3) new three-way permits in 2024.

(2) Three (3) new three-way permits in 2025.

(3) Four (4) new three-way permits in 2026.



1 If the commission does not issue the amount of three-way permits
2 allowed in subdivisions (1) through (3) in that year, any unissued
3 permits will roll over and may be issued in a subsequent year.

4 (g) The following apply to permits issued under subsection (f):

5 (1) An applicant for a permit under subsection (f) must be a
6 proprietor, an owner or lessee, or both, of a restaurant located
7 within an economic development area, an area needing
8 redevelopment, or a redevelopment district as established under
9 IC 36-7-14 in a municipality's:

10 (A) downtown redevelopment district; or

11 (B) downtown economic revitalization area.

12 (2) The cost of an initial permit is forty thousand dollars
13 (\$40,000).

14 (3) The total number of active permits issued under subsection (f)
15 may not exceed the ten (10) new three-way permits, as set forth
16 in that subsection.

17 (4) The municipality may adopt an ordinance under
18 IC 7.1-3-19-17 requiring a permit holder to enter into a formal
19 written commitment as a condition of eligibility for a permit. As
20 set forth in IC 7.1-3-19-17(b), a formal written commitment is
21 binding on the permit holder and on any lessee or proprietor of
22 the permit premises.

23 (5) Notwithstanding IC 7.1-3-1.1, if business operations cease at
24 the permit premises for more than six (6) months, the permit shall
25 revert to the commission and the permit holder is not entitled to
26 any refund or other compensation.

27 (6) Except as provided in subdivision (8), the ownership of a
28 permit may not be transferred.

29 (7) A permit may not be transferred from the premises for which
30 the permit was issued.

31 (8) If the area in which the permit issued to a premises under
32 subsection (f) is located is no longer designated an economic
33 development area, an area needing redevelopment, or a
34 redevelopment district, a permit issued under this section may be
35 renewed, and the ownership of the permit may be transferred, but
36 the permit may not be transferred from the permit premises.

37 (h) Except as provided in section 16.3 of this chapter, the
38 commission may issue to the city of Delphi not more than two (2) new
39 three-way permits under this subsection.

40 (i) The following apply to permits issued under subsection (h):

41 (1) An applicant for a permit under subsection (h) must be a
42 proprietor, an owner or lessee, or both, of a restaurant located



1 within an economic development area, an area needing
 2 redevelopment, or a redevelopment district as established under
 3 IC 36-7-14 in a municipality's:

4 (A) downtown redevelopment district; or

5 (B) downtown economic revitalization area.

6 (2) The cost of an initial permit is forty thousand dollars
 7 (\$40,000).

8 (3) The total number of active permits issued under subsection (h)
 9 may not exceed the two (2) new three-way permits, as set forth in
 10 that subsection.

11 (4) The municipality may adopt an ordinance under
 12 IC 7.1-3-19-17 requiring a permit holder to enter into a formal
 13 written commitment as a condition of eligibility for a permit. As
 14 set forth in IC 7.1-3-19-17(b), a formal written commitment is
 15 binding on the permit holder and on any lessee or proprietor of
 16 the permit premises.

17 (5) Notwithstanding IC 7.1-3-1.1, if business operations cease at
 18 the permit premises for more than six (6) months, the permit shall
 19 revert to the commission and the permit holder is not entitled to
 20 any refund or other compensation.

21 (6) Except as provided in subdivision (8), the ownership of a
 22 permit may not be transferred.

23 (7) A permit may not be transferred from the premises for which
 24 the permit was issued.

25 (8) If the area in which the permit issued to a premises under
 26 subsection (h) is located is no longer designated an economic
 27 development area, an area needing redevelopment, or a
 28 redevelopment district, a permit issued under this section may be
 29 renewed, and the ownership of the permit may be transferred, but
 30 the permit may not be transferred from the permit premises.

31 (j) Except as provided in section 16.3 of this chapter, the
 32 commission may issue to the city of Warsaw not more than three (3)
 33 new three-way permits under this subsection.

34 (k) The following apply to permits issued under subsection (j):

35 (1) An applicant for a permit under subsection (j) must be a
 36 proprietor, an owner or lessee, or both, of a restaurant located
 37 within an economic development area, an area needing
 38 redevelopment, or a redevelopment district as established under
 39 IC 36-7-14 in a municipality's:

40 (A) downtown redevelopment district; or

41 (B) downtown economic revitalization area.

42 (2) The cost of an initial permit is forty thousand dollars



- 1 (\$40,000).
 2 (3) The total number of active permits issued under subsection (j)
 3 may not exceed the three (3) new three-way permits, as set forth
 4 in that subsection.
 5 (4) The municipality may adopt an ordinance under
 6 IC 7.1-3-19-17 requiring a permit holder to enter into a formal
 7 written commitment as a condition of eligibility for a permit. As
 8 set forth in IC 7.1-3-19-17(b), a formal written commitment is
 9 binding on the permit holder and on any lessee or proprietor of
 10 the permit premises.
 11 (5) Notwithstanding IC 7.1-3-1.1, if business operations cease at
 12 the permit premises for more than six (6) months, the permit shall
 13 revert to the commission and the permit holder is not entitled to
 14 any refund or other compensation.
 15 (6) Except as provided in subdivision (8), the ownership of a
 16 permit may not be transferred.
 17 (7) A permit may not be transferred from the premises for which
 18 the permit was issued.
 19 (8) If the area in which the permit issued to a premises under
 20 subsection (j) is located is no longer designated an economic
 21 development area, an area needing redevelopment, or a
 22 redevelopment district, a permit issued under this section may be
 23 renewed, and the ownership of the permit may be transferred, but
 24 the permit may not be transferred from the permit premises.
 25 (l) Except as provided in section 16.3 of this chapter, the
 26 commission may issue to the town of Syracuse not more than one (1)
 27 new three-way permit under this subsection.
 28 (m) The following apply to a permit issued under subsection (l):
 29 (1) An applicant for a permit under subsection (l) must be a
 30 proprietor, an owner or lessee, or both, of a restaurant located
 31 within an economic development area, an area needing
 32 redevelopment, or a redevelopment district as established under
 33 IC 36-7-14 in a municipality's:
 34 (A) downtown redevelopment district; or
 35 (B) downtown economic revitalization area.
 36 (2) The cost of an initial permit is forty thousand dollars
 37 (\$40,000).
 38 (3) The total number of active permits issued under subsection (l)
 39 may not exceed the one (1) new three-way permit, as set forth in
 40 that subsection.
 41 (4) The municipality may adopt an ordinance under
 42 IC 7.1-3-19-17 requiring a permit holder to enter into a formal



written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of a permit may not be transferred.

(7) A permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises under subsection (1) is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(n) Except as provided in section 16.3 of this chapter, the commission may issue to the town of Schererville not more than three (3) new three-way permits. The following applies to a permit issued under this subsection:

(1) An applicant for a permit must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in the town's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under this subsection may not exceed the three (3) new three-way permits.

(4) The town may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the



1 permit shall revert to the commission and the permit holder
2 is not entitled to any refund or other compensation.

3 (6) Except as provided in subdivision (8), the ownership of the
4 permit may not be transferred.

5 (7) The permit may not be transferred from the premises for
6 which the permit was issued.

7 (8) If the area in which the permit issued to a premises is
8 located is no longer designated an economic development
9 area, an area needing redevelopment, or a redevelopment
10 district, a permit issued under this section may be renewed,
11 and the ownership of the permit may be transferred, but the
12 permit may not be transferred from the permit premises.

13 (o) Except as provided in section 16.3 of this chapter, the
14 commission may issue to the city of Lafayette not more than three
15 (3) new three-way permits. The following apply to a permit issued
16 under this subsection:

17 (1) An applicant for a permit must be a proprietor, an owner
18 or lessee, or both, of a restaurant located within an economic
19 development area, an area needing redevelopment, or a
20 redevelopment district as established under IC 36-7-14 in the
21 city's:

22 (A) downtown redevelopment district; or

23 (B) downtown economic revitalization area.

24 (2) The cost of an initial permit is forty thousand dollars
25 (\$40,000).

26 (3) The total number of active permits issued under this
27 subsection may not exceed the three (3) new three-way
28 permits.

29 (4) The city may adopt an ordinance under IC 7.1-3-19-17
30 requiring a permit holder to enter into a formal written
31 commitment as a condition of eligibility for a permit. As set
32 forth in IC 7.1-3-19-17(b), a formal written commitment is
33 binding on the permit holder and on any lessee or proprietor
34 of the permit premises.

35 (5) Notwithstanding IC 7.1-3-1.1, if business operations cease
36 at the permit premises for more than six (6) months, the
37 permit shall revert to the commission and the permit holder
38 is not entitled to any refund or other compensation.

39 (6) Except as provided in subdivision (8), the ownership of the
40 permit may not be transferred.

41 (7) The permit may not be transferred from the premises for
42 which the permit was issued.



(8) If the area in which the permit issued to a premises is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(p) Except as provided in section 16.3 of this chapter, the commission may issue to the city of West Lafayette not more than two (2) new three-way permits. The following apply to a permit issued under this subsection:

(1) An applicant for a permit must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in the city's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under this subsection may not exceed the two (2) new three-way permits.

(4) The city may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of the permit may not be transferred.

(7) The permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(q) Except as provided in section 16.3 of this chapter, the



1 commission may issue a new three-way permit to an applicant who
 2 is a proprietor, as owner or lessee, or both, of a restaurant located
 3 within a transit development district established under
 4 IC 36-7.5-4.5 and located in the city of Michigan City. The
 5 commission may issue not more than eight (8) new three-way
 6 permits under this subsection. The following apply to a permit
 7 issued under this subsection:

8 (1) The cost of an initial permit is forty thousand dollars
 9 (\$40,000).

10 (2) The total number of active permits issued under this
 11 subsection may not exceed the eight (8) new three-way
 12 permits.

13 (3) The municipality may adopt an ordinance under
 14 IC 7.1-3-19-17 requiring a permit holder to enter into a
 15 formal written commitment as a condition of eligibility for a
 16 permit. As set forth in IC 7.1-3-19-17(b), a formal written
 17 commitment is binding on the permit holder and on any lessee
 18 or proprietor of the permit premises.

19 (4) Notwithstanding IC 7.1-3-1.1, if business operations cease
 20 at the permit premises for more than six (6) months, the
 21 permit shall revert to the commission and the permit holder
 22 is not entitled to any refund or other compensation.

23 (5) Except as provided in subdivision (7), the ownership of the
 24 permit may not be transferred.

25 (6) The permit may not be transferred from the premises for
 26 which the permit was issued.

27 (7) If the area in which the permit issued to a premises is
 28 located is no longer designated as part of transit development
 29 district established under IC 36-7.5-4.5, a permit issued under
 30 this section may be renewed, and the ownership of the permit
 31 may be transferred, but the permit may not be transferred
 32 from the permit premises.

33 (r) Except as provided in section 16.3 of this chapter, the
 34 commission may issue to the city of Delphi not more than two (2)
 35 new three-way permits. The following apply to a permit issued
 36 under this subsection:

37 (1) An applicant for a permit must be a proprietor, an owner
 38 or lessee, or both, of a restaurant located within an economic
 39 development area, an area needing redevelopment, or a
 40 redevelopment district as established under IC 36-7-14 in the
 41 city's:

42 (A) downtown redevelopment district; or



- 1 (B) downtown economic revitalization area.
- 2 (2) The cost of an initial permit is forty thousand dollars
- 3 (\$40,000).
- 4 (3) The total number of active permits issued under this
- 5 subsection may not exceed the two (2) new three-way permits.
- 6 (4) The city may adopt an ordinance under IC 7.1-3-19-17
- 7 requiring a permit holder to enter into a formal written
- 8 commitment as a condition of eligibility for a permit. As set
- 9 forth in IC 7.1-3-19-17(b), a formal written commitment is
- 10 binding on the permit holder and on any lessee or proprietor
- 11 of the permit premises.
- 12 (5) Notwithstanding IC 7.1-3-1.1, if business operations cease
- 13 at the permit premises for more than six (6) months, the
- 14 permit shall revert to the commission and the permit holder
- 15 is not entitled to any refund or other compensation.
- 16 (6) Except as provided in subdivision (8), the ownership of the
- 17 permit may not be transferred.
- 18 (7) The permit may not be transferred from the premises for
- 19 which the permit was issued.
- 20 (8) If the area in which the permit issued to a premises is
- 21 located is no longer designated an economic development
- 22 area, an area needing redevelopment, or a redevelopment
- 23 district, a permit issued under this section may be renewed,
- 24 and the ownership of the permit may be transferred, but the
- 25 permit may not be transferred from the permit premises.
- 26 (s) Except as provided in section 16.3 of this chapter, the
- 27 commission may issue to the city of Bloomington not more than
- 28 two (2) new three-way permits. The following apply to a permit
- 29 issued under this subsection:
- 30 (1) An applicant for a permit must be a proprietor, an owner
- 31 or lessee, or both, of a restaurant located within an economic
- 32 development area, an area needing redevelopment, or a
- 33 redevelopment district as established under IC 36-7-14 in the
- 34 city's:
- 35 (A) downtown redevelopment district; or
- 36 (B) downtown economic revitalization area.
- 37 (2) The cost of an initial permit is forty thousand dollars
- 38 (\$40,000).
- 39 (3) The total number of active permits issued under this
- 40 subsection may not exceed the two (2) new three-way permits.
- 41 (4) The city may adopt an ordinance under IC 7.1-3-19-17
- 42 requiring a permit holder to enter into a formal written



1 commitment as a condition of eligibility for a permit. As set
2 forth in IC 7.1-3-19-17(b), a formal written commitment is
3 binding on the permit holder and on any lessee or proprietor
4 of the permit premises.

5 (5) Notwithstanding IC 7.1-3-1.1, if business operations cease
6 at the permit premises for more than six (6) months, the
7 permit shall revert to the commission and the permit holder
8 is not entitled to any refund or other compensation.

9 (6) Except as provided in subdivision (8), the ownership of the
10 permit may not be transferred.

11 (7) The permit may not be transferred from the premises for
12 which the permit was issued.

13 (8) If the area in which the permit issued to a premises is
14 located is no longer designated an economic development
15 area, an area needing redevelopment, or a redevelopment
16 district, a permit issued under this section may be renewed,
17 and the ownership of the permit may be transferred, but the
18 permit may not be transferred from the permit premises.

19 SECTION 2. An emergency is declared for this act.



COMMITTEE REPORT

Mr. President: The Senate Committee on Public Policy, to which was referred Senate Bill No. 89, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Replace the effective date in SECTION 1 with "[EFFECTIVE UPON PASSAGE]".

Page 8, after line 12, begin a new paragraph and insert:

"(o) Except as provided in section 16.3 of this chapter, the commission may issue to the city of Lafayette not more than three (3) new three-way permits. The following apply to a permit issued under this subsection:

(1) An applicant for a permit must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in the city's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under this subsection may not exceed the three (3) new three-way permits.

(4) The city may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of the permit may not be transferred.

(7) The permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed,



and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(p) Except as provided in section 16.3 of this chapter, the commission may issue to the city of West Lafayette not more than two (2) new three-way permits. The following apply to a permit issued under this subsection:

(1) An applicant for a permit must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in the city's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under this subsection may not exceed the two (2) new three-way permits.

(4) The city may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of the permit may not be transferred.

(7) The permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(q) Except as provided in section 16.3 of this chapter, the commission may issue a new three-way permit to an applicant who is a proprietor, as owner or lessee, or both, of a restaurant located within a transit development district established under IC 36-7.5-4.5. The commission may issue not more than eight (8)



new three-way permits under this subsection. The following apply to a permit issued under this subsection:

- (1) The cost of an initial permit is forty thousand dollars (\$40,000).**
- (2) The total number of active permits issued under this subsection may not exceed the eight (8) new three-way permits.**
- (3) The municipality may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.**
- (4) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.**
- (5) Except as provided in subdivision (7), the ownership of the permit may not be transferred.**
- (6) The permit may not be transferred from the premises for which the permit was issued.**
- (7) If the area in which the permit issued to a premises is located is no longer designated as part of transit development district established under IC 36-7.5-4.5, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.**

SECTION 2. An emergency is declared for this act."

and when so amended that said bill do pass.

(Reference is to SB 89 as introduced.)

ALTING, Chairperson

Committee Vote: Yeas 10, Nays 0.

ES 89—LS 6357/DI 87



SENATE MOTION

Mr. President: I move that Senate Bill 89 be amended to read as follows:

Page 10, line 4, delete "IC 36-7.5-4.5." and insert **"IC 36-7.5-4.5 and located in the city of Michigan City."**

(Reference is to SB 89 as printed January 23, 2026.)

POL JR.

SENATE MOTION

Mr. President: I move that Senate Bill 89 be amended to read as follows:

Page 10, between lines 31 and 32, begin a new paragraph and insert:

"(r) Except as provided in section 16.3 of this chapter, the commission may issue to the city of Delphi not more than two (2) new three-way permits. The following apply to a permit issued under this subsection:

(1) An applicant for a permit must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in the city's:

- (A) downtown redevelopment district; or**
- (B) downtown economic revitalization area.**

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under this subsection may not exceed the two (2) new three-way permits.

(4) The city may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.



(6) Except as provided in subdivision (8), the ownership of the permit may not be transferred.

(7) The permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises.

(s) Except as provided in section 16.3 of this chapter, the commission may issue to the city of Bloomington not more than two (2) new three-way permits. The following apply to a permit issued under this subsection:

(1) An applicant for a permit must be a proprietor, an owner or lessee, or both, of a restaurant located within an economic development area, an area needing redevelopment, or a redevelopment district as established under IC 36-7-14 in the city's:

(A) downtown redevelopment district; or

(B) downtown economic revitalization area.

(2) The cost of an initial permit is forty thousand dollars (\$40,000).

(3) The total number of active permits issued under this subsection may not exceed the two (2) new three-way permits.

(4) The city may adopt an ordinance under IC 7.1-3-19-17 requiring a permit holder to enter into a formal written commitment as a condition of eligibility for a permit. As set forth in IC 7.1-3-19-17(b), a formal written commitment is binding on the permit holder and on any lessee or proprietor of the permit premises.

(5) Notwithstanding IC 7.1-3-1.1, if business operations cease at the permit premises for more than six (6) months, the permit shall revert to the commission and the permit holder is not entitled to any refund or other compensation.

(6) Except as provided in subdivision (8), the ownership of the permit may not be transferred.

(7) The permit may not be transferred from the premises for which the permit was issued.

(8) If the area in which the permit issued to a premises is located is no longer designated an economic development area, an area needing redevelopment, or a redevelopment



district, a permit issued under this section may be renewed, and the ownership of the permit may be transferred, but the permit may not be transferred from the permit premises."

(Reference is to SB 89 as printed January 23, 2026.)

DERNULC

COMMITTEE REPORT

Mr. Speaker: Your Committee on Public Policy, to which was referred Senate Bill 89, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to SB 89 as reprinted January 27, 2026.)

MANNING

Committee Vote: Yeas 10, Nays 0

